

VCU335068 Paige, Brittney vs. Metro One Loss Prevention Services Group (West Coast), Inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-28

Motion: Defendant's Motion to Compel Arbitration

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Re: Paige, Brittney vs. Metro One Loss Prevention Services Group (West Coast), Inc.

Case No.: VCU335068

Date: September 28, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Defendant's Motion to Compel Arbitration

Tentative Ruling: To deny the motion without prejudice; to require a separate motion to stay this matter on issues unrelated to arbitration

Background

On May 15, 2026, Plaintiff sued Defendant Metro One Loss Prevention Services Group (West Coast), Inc., dba Metro One LPSG (West Coast), Inc. under Labor Code section 2968, et seq under the Private Attorney General Act ("PAGA").

The complaint expressly states "This is a representative PAGA-only action. Plaintiff does not assert any individual cause of action, class claim, or claim for individual damages, restitution, unpaid wages, statutory penalties recoverable only in an individual capacity, waiting time penalties, or wage statement penalties on an individual basis. Plaintiff seeks only civil penalties, attorneys' fees and costs, and any other relief available under PAGA." (Complaint ¶17.)

The Court notes here that the notice of claim is dated January 28, 2026.

Defendant seeks to compel arbitration of the individual component of the PAGA claim, despite Plaintiff's lack of pleading thereof and stay the representative component of the PAGA claim pending arbitration. Alternatively, Defendant seeks to stay this matter if arbitration is denied based on pending, prior filed class action and PAGA cases in Orange and Alameda Counties.

For clarity, the Court will adopt the terminology from *Galarsa v. Dolgen California, LLC* (2023) 88 Cal.App.5th 639, noting that the term "individual" refers to those claims brought by a plaintiff as a representative of the State and which seek to recover civil penalties under PAGA for Labor Code violations experienced by the plaintiff. (Id. at 648 [referring to these claims as "Type A" claims].) Further, the term "non-individual" refers to those claims brought by a plaintiff as a representative of the State and which seek to recover civil penalties under PAGA for Labor Code violations experienced by employees other than the plaintiff. (Id. at 649 [referring to these claims as "Type O" claims].)

Headless PAGA Actions

Section 2699 was revised effective July 1, 2024 and the revisions, pursuant to subdivision (v)(2), "shall not apply to a civil action with respect to which the notice required by" section 2699.3 "was filed before June 19, 2024."

Prior PAGA Statute

The appellate court's opinion in *Galarsa*, supra, 115 Cal.App.5th at 4, appears limited to such pre-amendment matters, stating:

"The first question is whether the version of PAGA in effect from mid-2016 to mid-2024 authorized an aggrieved employee to bring a PAGA action that seeks to recover civil penalties imposed for Labor Code violations suffered only by other employees. Such lawsuits are sometimes referred to as "headless" PAGA actions because the plaintiff employee has chosen not to pursue civil penalties for violations he or she suffered personally. (*CRST Expedited, Inc. v. Superior Court* (2025) 112 Cal.App.5th 872, 882 [334 Cal.Rptr.3d 647] (*CRST Expedited*), review granted Sept. 17, 2025, S292005.) We again conclude such PAGA actions were allowed. (*CRST Expedited*, at p. 882.)"

The amendment to section 2699, which appears applicable here, involves subsection (c) and revisions thereto.

Prior to the amendment, subsection (c) stated "For purposes of this part, 'aggrieved employee' means any person who was employed by the alleged violator and against whom one or more of the alleged violations was committed"

The courts in *CRST Expedited*, supra, *Galarsa*, supra, *Rodriguez v. Packers Sanitation Servs. LTD., LLC*, 109 Cal.App.5th 69, 75, and *Balderas v. Fresh Start Harvesting, Inc.* (2024) 101 Cal.App.5th 533, 536 all found that, under this pre July 2024 version, no individual claim was necessary and headless PAGA (Type O Only) claims were permitted.

By contrast, *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001, 1005, also under the prior version of the PAGA statute, notes "every PAGA action necessarily includes an individual PAGA claim" (that is a Type A and Type O claim) (See also *Williams v. Alacrity Solutions Group, LLC*, (2025) 110 Cal.App.5th 932, 943 [agreeing with *Leeper* that "the inclusion of an individual PAGA claim [is] mandated by PAGA's text"].)

Those matters all appear to be on appeal pending consideration and disposition of related issues.

Current PAGA Statute

However, these decisions, and their pending status, would not appear to impact the analysis in this matter, as, noted above, subdivision (c) was revised, effective July 1, 2024, to state the following:

(c)

(1) For purposes of this part, "aggrieved employee" means any person who was employed by the alleged violator and personally suffered each of the violations alleged during the period prescribed under Section 340 of the Code of Civil Procedure..."

As such, the Court interprets this version to eliminate headless PAGA claims, like the one before the Court.

This applicable version of the PAGA statute requires that an aggrieved employee personally suffered each violations alleged. In other words, that the revised statute requires a plaintiff to have been employed and to have personally suffered each violation alleged during the requisite statutory period.

Plaintiff's position, that this is a Type O PAGA claim only, is impermissible under the current PAGA statute.

The Court will not, and cannot, modify Plaintiff's pleading to include a Type A claim and therefore evaluate whether the Type A claim is subject to the arbitration agreement at issue in this matter.

The Court also cannot grant the motion to compel a non-existent Type A claim.

While the Court is not faced with a sufficiency of the pleading challenge (that is, via demurrer, motion for judgment on the pleadings, or motion to strike), the Court believes there must be some underlying viable claim to compel to arbitration. Based on the pleadings in this matter and Plaintiff's argument in opposition of this motion, the Court finds no such claim for which to consider compelling arbitration thereto.

The Court, therefore, must deny the motion to compel arbitration without prejudice, on the basis that no PAGA claim has been properly alleged.

As to the request to stay this matter pending other, prior filed actions, the Court will require a separate motion to stay this matter on an issue unrelated to arbitration or the arbitration agreement.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.